

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 03, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CARLOS A AGUILAR and JAMAR KEENE on behalf of themselves and others
similarly situated vs. AMCOR RIGID PLASTICS USA LLC, et al.
Case Nos. CU23-03836**

Motion for Final Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiffs CARLOS A. AGUILAR and JAMAR KEENE move for final approval of the settlement reached with Defendant AMCOR RIGID PLASTICS USA LLC. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business expenses, violation of Business and Professions Code sections 17200 et seq. and PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is

the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

This court preliminarily approved the settlement on July 24, 2025. After counsel mistakenly dismissed the wrong action, the court set aside the dismissal and ordered the pending cases consolidated and directed plaintiffs to file an amended consolidated complaint. A second amended complaint consolidating the several pending actions was filed March 3, 2026.

The class consists of 488 non-exempt employees employed by Defendant in the State of California between December 30, 2020 to January 2, 2025. The PAGA representative group includes 373 persons employed between August 30, 2022 and January 2, 2025.

The settlement of \$1,020,000 reached after arms-length mediation with mediator Todd Smith, Esq. is fair, reasonable, and not the product of fraud, overreach, or collusion

488 notices were issued with 39 returned as undeliverable. After performing a skip trace, only 2 notices were determined to be undeliverable. The settlement administrator has received no requests for exclusion, no workweek disputes and no written objections. The average class settlement payment will be at least \$1,190.57.

The PAGA resolution for \$50,000 in civil penalties with 75% paid to LWDA and 25% to aggrieved employees is reasonable.

The court finds an enhancement award to each representative plaintiff of \$5,000 is reasonable.

The costs of Simpluris, the settlement administrator, not to exceed \$9,000 are reasonable.

The court finds an award of 25% of the gross settlement for attorney's fees is appropriate. Largely the pleadings are cookie cutter. While the efforts of counsel did result in a net award to the class and aggrieved members, attention to detail lacked and it appeared on more than one occasion to the court that this case fell through the cracks. (Counsel was previously advised that these issues would be reflected in the fees award.) Additionally, the court would not award \$1,000 per hour but routinely awards \$600-675 in cases such as these in recognition of the cookie cutter nature and the significant competition in Solano County. The number of hours claimed are excessive and appear to reflect unnecessary duplicate efforts as too many attorneys touched these files (i.e. 3 attorneys with billing entries for 1 CMC).

Costs of \$28,262.73 are supported by the declarations of James Clark and Kelsey Szamet and are primarily driven by the mediation and expert expenses.

Hearing to confirm final distribution of funds, including deposit of any unclaimed funds, is set for **September 2, 2027, at 8:30 a.m.** A declaration confirming compliance, including confirmation of final disposition of the unclaimed proceeds to the State Controller, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 which shall be approved as to form by defense counsel pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

MIDLAND CREDIT MANAGEMENT INC. v. VIVIAN SHAW
Case No. CL25-10935

Defendant's Motion to Compel Further Responses to Discovery and Requests for Sanctions

TENTATIVE RULING:

Defendant's unopposed motion to to compel further responses to discovery from Plaintiff MIDLAND CREDIT MANAGEMENT is DENIED IN PART and GRANTED IN PART.

As to Special Interrogatories Nos 1 and 5, the motion is DENIED. As to Special Interrogatory No. 6, the motion is GRANTED.

As to Plaintiff's responses to the Request for Production of Documents, Plaintiff failed to timely respond to the discovery and waived objections. Plaintiff shall respond to the Request for Production (Set One) without objection.

As to the Requests for Admission, the motion is denied. The terminology used by Plaintiff in RFA No. 2 is objectionable and vague.

Plaintiff's amended discovery responses are due 20 days from service of notice of entry of this order.

The court declines to award sanctions as to Plaintiff's motion to compel further responses to the request for production of documents as Defendant's motion is unopposed. (See CCP § 2031.300(c) (requests for production).) As to the special interrogatories, circumstances make imposition of sanctions unjust.

JAIME O ADVIENTO v NORMA R WATSON
Case No. CL25-11340

Defendant NORMA WATSON's Motion to Set Aside Default

TENTATIVE RULING:

A proof of service filed January 22, 2026, reflects personal service of the summons and complaint on Defendant NORMA R. WATSON by registered process server Carlo Perez on Saturday, December 10, 2025 at 4:00 p.m.

On January 16, 2026, a request for entry of default was mailed to NORMA R. WATSON by Carlo Perez. Default was entered by the clerk on January 22, 2026.

On behalf of NORMA WATSON, through her attorneys-in-fact, counsel moves to set aside the default on the basis that WATSON suffers from cognitive impairments that affected her ability to understand that she was being sued and therefore deprived her of “notice.” (Notably, this assertion is not supported by any medical evidence, and is further undermined by her signature on the power of attorney on March 9, 2026. If WATSON was cognitively incapacitated on December 10, 2025, it would seem she would be incapacitated on March 9, 2026 and not capable of consenting to a power of attorney.)

Code of Civil Procedure section 473(b) allows relief from entry of default upon motion for “mistake, inadvertence, surprise or excusable neglect.” Motions for such relief must be filed within 6 months of the default. 6 months or 180 days from January 22, 2026, was July 22, 2026. The motion to set aside the default was not filed until July 28, 2026 and is untimely.

The six month deadline provided by Code of Civil Procedure section 473(b) is mandatory and jurisdictional. (*Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; *Arambula v Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340.) Because the summons and complaint was personally served by a registered process server, Code of Civil Procedure section 473.5(a)(i) does not apply.

The motion to set aside the default is DENIED.

FERNANDEZ v. DOUBLE TREE BY HILTON HOTEL & SPA, et al.
Case No. CU25-09875

Motion by Defendant BUTTERFLY EFFECT HOTELS, LLC to Compel Arbitration

TENTATIVE RULING:

Defendants’ motion to compel arbitration is DENIED.

Existence of Agreement to Arbitrate

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm’t, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a

preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

Plaintiff FERNANDEZ worked as a Laundry Attendant for Defendants for seven years. There is no dispute that as part of the onboarding process, Plaintiff executed an employment agreement that contained a provision requiring arbitration agreement requiring the parties to arbitrate only wrongful termination claims. (Burrow Decl., Exh. A, ¶ 7.)

Evidentiary Objections

The court sustains the objection to Margarita FERNANDEZ's declaration as lacking foundation and hearsay. FERNANDEZ attests that she cannot read in English but signed a declaration written in English that was read to her in Spanish. The court has no evidence as to what was read to FERNANDEZ and by whom or whether that is accurate. There is no evidence that FERNANDEZ is unable to read in Spanish. The proper procedure would be to have FERNANDEZ sign a declaration written in Spanish and to have that declaration translated by a certified translator.

It is unnecessary for the court to rule on any other evidentiary objections advanced by Defendants which are not necessary to rule on this motion.

Agreement Is Unconscionable

Though California and federal law alike favor arbitration, general contract defenses such as unconscionability may be applied to invalidate arbitration agreements. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*).) A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree ("procedural unconscionability") and the contract contains terms that are unreasonably favorable to the other party ("substantive unconscionability"). (*Ibid.*) Both forms of unconscionability must be present for a contract to be found unconscionable overall, but a high degree of one form of unconscionability will reduce the amount of the other form that must be present in order to support an ultimate finding of unconscionability. (*Id.* at pp. 125-126.) The ultimate issue is whether a contract is sufficiently unfair in light of all of the circumstances that a court should refuse enforcement. (*Id.* at p. 126.) A party asserting unconscionability bears the burden of proof. (*Ibid.*)

Procedural unconscionability analysis begins with determining whether a contract is one of adhesion. (*Kho, supra*, 8 Cal.5th at p. 126.) A contract of adhesion is standardized, on a preprinted form, and presented on a "take it or leave it" basis. (*Ibid.*) After determining that a contract is one of adhesion a court must analyze whether the circumstances of the contract's formation created such oppression or surprise that further inspection of fairness should be done. (*Kho* at p. 126.) "Oppression" here refers to a lack of negotiation and meaningful choice; "surprise" to hiding contractual provisions within prolix printed forms. (*Ibid.*)

Circumstances relevant to establishing oppression include, without limitation, the amount of time given the party to consider the contract, pressure exerted on the party to sign, the length and complexity of the contract and the challenged provision, the education and experience of the party, and whether the party had the aid of an attorney. (*Kho, supra*, 8 Cal.5th at 126-127.)

Analysis of substantive unconscionability is a matter of seeking out terms that are overly harsh, unduly oppressive, or unfairly one-sided. (*Kho, supra*, 8 Cal.5th at pp. 129-130.) Unconscionable terms impair the integrity of the bargaining process, attempt to impermissibly alter fundamental legal duties, or otherwise contravene public interests and policies. (*Id.* at p. 130.) They might include, without limitation, fine-print terms, unreasonably or unexpectedly harsh terms regarding the central aspects of the transaction, or terms that undermine the non-drafting party's reasonable expectations. (*Ibid.*)

Both procedural and substantive unconscionability must be present in order for the court to find a contract unenforceable due to unconscionability. However, procedural and substantive unconscionability need not be present in the same degree. A sliding scale is applied. That is, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. (*A&M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 487).

Procedural Unconscionability

Plaintiff presents no admissible evidence of surprise or oppression. It is undisputed that the arbitration agreement was presented with onboarding documents and in a contract of adhesion as a condition of Plaintiff's employment. (Burrow Decl., ¶¶ 5-6.)

As to Plaintiff's claims that she could not read the arbitration agreement, the court notes that she initialed each paragraph in person and signed the document. Defendant presents evidence that she completed other onboarding documents without assistance. (Burrow Decl., ¶¶ 5, 9, 10.) No admissible evidence is presented that Plaintiff could not read or did not understand the employment agreement that she completed.

The court finds some minimum amount of procedural unconscionability. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493; *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915.)

Substantive Unconscionability

Significant substantive unconscionability is present with this arbitration agreement.

First, the arbitration agreement creates an artificial 120-day limitations period as well as unilateral and unreasonable timelines regarding communication regarding selection of arbitrators and hearing dates which benefits only the employer

Second, the arbitration agreement provides discretion to the arbitrator to impose on the employee all of the costs of arbitration.

Third, the court independently notes that the arbitration provision is unilateral, applying only to claims by an employee against the employer, and not bilateral, to include claims by the employer against the employee. This is further emphasized by the “reminder” paragraph that the Employer can still seek to enforce the agreement in court rather than the ability of **both parties** to seek injunctive relief in court despite the arbitration provisions.

Finally, the court notes that wage and hour, invasion of privacy, fraud and whistle-blowing claims not related to termination would not be subject to the arbitration provisions. The effect of enforcing the arbitration agreement as to only a subset of Plaintiff’s claims would be to stay the balance of Plaintiff’s claims pending completion of arbitration and to cause significant increase in the cost of litigation and delay. Again, this is another effect that benefits solely the Employer.

The employment agreement contains a severability clause. The court considered severance of these terms, but exercises its discretion to decline to sever the unconscionable terms to permit enforcement of enforce the balance of the arbitration agreement. (*Cook v. University of Southern California* (2024) 102 CalApp.5th 312.) The sole purpose of these terms was to unfairly discourage employees from exercising their rights to address workplace claims to the sole benefit of the employer.

Conclusion

The motion to compel arbitration is DENIED.

SHAYLA LEWELLEN v. CITY OF FAIRFIELD et al.
Case No. CU25-12033

CAP SOLANO’s Demurrer; SCTA’s Demurrer

TENTATIVE RULING

Counsel for moving parties shall appear. The moving papers fail to provide notice of the court’s tentative ruling system as required by Local Rule 3.9.

The demurrers by Defendants CAP SOLANO JPA (“CAP SOLANO”) and SOLANO COUNTY TRANSPORTATION AUTHORITY (“SCTA”) to Plaintiff’s complaint are both SUSTAINED WITHOUT LEAVE TO AMEND.

Each demurrer is not moot. On August 13, 2026, Plaintiff filed an opposition to a demurrer prior to the August 20, 2026 hearing on the demurrer brought by Defendants CITY OF FAIRFIELD (“FAIRFIELD”), CATHERINE MOY, DAVID GASSAWAY, and SAMANTHA BURROWS but did not specify to which of the pending demurrers the

opposition applied. Following judicial review, on August 13, 2026, a proposed amended complaint was rejected by the court at the direction of Department 8 on the basis that it was untimely and an opposition had been filed. On August 19, 2026, Plaintiff provided additional notice of opposition to a demurrer filed by “Defendants City of Fairfield, CAP Solano JPA, Catherine Moy, David Gassaway, Samantha Burrows and Solano Transportation Authority.”

Government Tort Claims Act. Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages against public entities generally must be presented to the entity within six months of accrual of the injury. (*A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) A written administrative claim for injury to the person, personal property, or crops must be presented within six months of the accrual of the cause of action. (Gov. Code § 911.2.) All other claims must be presented within one year. (*Ibid.*) Failure to timely file a claim that must be filed within six months can be excused with a written application to the public entity for leave to file late. (Gov. Code § 911.4.) Absent an applicable exception, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Plaintiff’s complaint marks the box stating that she has complied with applicable claims statutes but the complaint lacks any factual allegations supporting that statement. It attaches a claim form showing she presented a claim to FAIRFIELD but there is nothing showing presentation to CAP SOLANO or SCTA which are separate legal public entities. The lack of stated facts showing compliance with claims presentation requirements is an independent ground to sustain the demurrers at hand.

Sufficiency of Pleading. Plaintiff’s complaint is ambiguous and unintelligible and largely nonsensical, which is an independent ground to sustain the demurrers at hand. (Code Civ. Proc., § 430.10(f).) It uses the Judicial Council form for claims based on contract but does not allege the formation or existence of any enforceable agreement between the parties. It employs common count cause of action forms but does not truly plead any express or implied promises to pay money; instead, Plaintiff seems to seek restitution of the value of misappropriated funds recovered by a state auditor as a result of Plaintiff’s “whistleblowing” or the alleged value of Plaintiff’s “Turnkey” idea. It distributes various conclusory allegations of wrongdoing, such as “fraud” and “land shaving” and “devaluation” of land, among various “attachments” interspersed through the complaint, without explaining what Plaintiff means by the use of those terms or how the conduct of the demurring defendants makes them liable to Plaintiff in a private civil cause of action. The complaint has almost no factual allegations concerning CAP SOLANO or SCTA at all, stating only that they were connected somehow to the ambiguously alleged “land shaving.” (Complaint at BC-4.)

Although uncertainty can usually be cured by amendment, Plaintiff has not met her burden of showing that it is reasonably possible for her to allege a valid cause of action against the demurring defendants. There is no civil cause of action for obstruction of justice. (*Agnew v. Parks* (1959) 172 Cal.App.2d 756, 766.) An essential element of

whistleblower retaliation is the existence of an employment relationship at the time of the allegedly retaliatory action, but there is no allegation that Plaintiff was ever an employee of CAP SOLANO or SCTA. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 287-288; *Bennett v. Rancho Cal. Water Dist.* (2019) 35 Cal.App.5th 908, 921.) Plaintiff appears unable to state a claim of fraud because Defendants CAP SOLANO and SCTA are absolutely immune from liability from any misrepresentations made by their employees (Gov. Code, § 818.8; *Masters v. San Bernardino County Employees Retirement Ass'n* (1995) 32 Cal.App.4th 30, 43) and Plaintiff did not allege the corruption or actual malice of any employee to have made any misrepresentation to overcome that employee's qualified immunity. (Gov. Code, § 822.2; *Masters*, 32 Cal.App.4th at 42).

While courts liberally grant leave to amend, it is improper to do so when a plaintiff cannot state a viable cause of action or show how she will amend the complaint to do so.

As the demurrers of CAP SOLANO JPA and SOLANO COUNTY TRANSPORTATION AUTHORITY are SUSTAINED WITHOUT LEAVE TO AMEND, the case is dismissed as to these defendants.

As the court has now sustained without leave to amend the demurrers of all named defendants, this case is DISMISSED WITH PREJUDICE. Any future dates, including Plaintiff's motion to compel scheduled October 1, 2026, motion for leave to amend the complaint scheduled December 3, 2026, and case management conference scheduled September 3, 2026, are vacated.

GRAVES v. KINDERCARE EDUC. LLC, ET AL.
Case No. CU26-00775

Petition to Compel Arbitration

TENTATIVE RULING:

Defendants' petition to compel arbitration is GRANTED.

Existence of Agreement to Arbitrate

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm't, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

Defendant is an Oregon professional corporation with locations across California and the United States. (Scrutton Decl., ¶ 3.) Plaintiff was employed for 4 months as a teacher at Defendant's Fairfield location. (Scrutton Decl., ¶ 3.)

There is no dispute that as part of the onboarding process, Plaintiff executed an arbitration agreement requiring the parties to arbitrate any "covered claims" arising between the parties. (Decl. of Scrutton, ¶ 5-6; Exhs. B and C.) "Covered claims" includes "all grievances, disputes, claims, causes of action ... arising out of or relating to [Plaintiff's] employment with KCE and the termination thereof." (*Ibid.*)

Agreement Is Not Unconscionable

Though California and federal law alike favor arbitration, general contract defenses such as unconscionability may be applied to invalidate arbitration agreements. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*)). A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree ("procedural unconscionability") and the contract contains terms that are unreasonably favorable to the other party ("substantive unconscionability"). (*Ibid.*) Both forms of unconscionability must be present for a contract to be found unconscionable overall, but a high degree of one form of unconscionability will reduce the amount of the other form that must be present in order to support an ultimate finding of unconscionability. (*Id.* at pp. 125-126.) The ultimate issue is whether a contract is sufficiently unfair in light of all of the circumstances that a court should refuse enforcement. (*Id.* at p. 126.) A party asserting unconscionability bears the burden of proof. (*Ibid.*)

Procedural unconscionability analysis begins with determining whether a contract is one of adhesion. (*Kho, supra*, 8 Cal.5th at p. 126.) A contract of adhesion is standardized, on a preprinted form, and presented on a "take it or leave it" basis. (*Ibid.*) After determining that a contract is one of adhesion a court must analyze whether the circumstances of the contract's formation created such oppression or surprise that further inspection of fairness should be done. (*Kho* at p. 126.) "Oppression" here refers to a lack of negotiation and meaningful choice; "surprise" to hiding contractual provisions within prolix printed forms. (*Ibid.*)

Circumstances relevant to establishing oppression include, without limitation, the amount of time given the party to consider the contract, pressure exerted on the party to sign, the length and complexity of the contract and the challenged provision, the education and experience of the party, and whether the party had the aid of an attorney. (*Kho, supra*, 8 Cal.5th at 126-127.)

Analysis of substantive unconscionability is a matter of seeking out terms that are overly harsh, unduly oppressive, or unfairly one-sided. (*Kho, supra*, 8 Cal.5th at pp. 129-130.) Unconscionable terms impair the integrity of the bargaining process, attempt to impermissibly alter fundamental legal duties, or otherwise contravene public interests and policies. (*Id.* at p. 130.) They might include, without limitation, fine-print terms, unreasonably or unexpectedly harsh terms regarding the central aspects of the

transaction, or terms that undermine the non-drafting party's reasonable expectations. (*Ibid.*)

Both procedural and substantive unconscionability must be present in order for the court to find a contract unenforceable due to unconscionability. However, procedural and substantive unconscionability need not be present in the same degree. A sliding scale is applied. That is, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. (*A&M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 487).

Although Plaintiff presents no evidence of surprise or oppression, it is undisputed that the arbitration agreement was presented in a contract of adhesion as a condition of Plaintiff's employment. (Decl. of Scrutton, ¶¶ 6-8.) Accordingly, there is some minimum amount of procedural unconscionability. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493; *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915.)

However, Plaintiff has not demonstrated that the arbitration agreement is so permeated with substantive unconscionability that it cannot be enforced. The only substantive unconscionability alleged is that the agreement contains a term limiting discovery to only a single interrogatory limited to the identification of potential witnesses, 25 requests for production of documents, and two eight-hour days of depositions, with the arbitrator permitted to allow additional discovery only upon a showing of "substantial need" or "an inability to pursue or defend certain claims without such additional discovery." (Decl. of Scrutton, Exh. C.) Given that the employer already has in its possession much of the documents that would be relevant to employment-related claims against it and has in its employ many of the relevant witnesses, and the agreement allows the arbitrator to permit additional discovery only upon a finding of "substantial need" or complete "inability" to pursue a claim, the discovery clause is substantively unconscionable. (*Ramirez*, 16 Cal.5th at 506; *Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, 716-717.) But, Plaintiff presents no reason why this singular unlawful provision should not simply be severed from the agreement and the remainder enforced while discovery is conducted pursuant to AAA rules. (See, *Fitz*, 118 Cal.App.4th at 726 [more than one unlawful provision in an agreement may weigh against severance].)

EFAA Does Not Apply

By its terms, and Defendant's status as a multi-state employer, the Federal Arbitration Act ("FAA" 9 U.S.C. § 1 et seq.) controls. (Scrutton, Exh. C.)

The Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA"; 9 U.S.C. §§401-402) creates the opportunity for a plaintiff to elect exemption from compelled arbitration under the Federal Arbitration Act for cases that involve disputes related to conduct that is alleged to constitute sexual assault or sexual harassment under applicable Federal, Tribal or State law. (9 U.S.C. §§ 401(4), 402(a);

Casey v. Superior Court (2025) 108 Cal.App. 5th 575, 587 [purpose of EFAA is to allow plaintiff claiming sexual harassment access to public forum]; *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 565 [EFAA legislative history shows intent to prohibit compelled arbitration of sexual assault or sexual harassment complaints and allow public proceedings].) The EFAA defines “sexual harassment dispute” to mean conduct that is alleged to constitute sexual harassment under applicable federal, tribal or state law. (9 U.S.C. § 401(4).)

California’s Fair Employment and Housing Act protects against harassment because of sex including sexual harassment, gender harassment and harassment based on pregnancy. (Govt. Code, §§ 12926(r); 12940.) Sex discrimination and sexual harassment are distinct wrongs under FEHA. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645.) Discrimination arises from “official” or “explicit” changes in the “terms, conditions or privileges of employment” by an employer; harassment focuses on situations in the social environment of the workplace that become intolerable because the harassment – verbal, physical or visual – communicates an offensive message to the harassed employee. (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 706; *Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 736.)

Sexually harassing conduct may be either “quid pro quo” or “hostile work environment” sexual harassment. (2 CCR, § 11034(f).) Harassment includes but is not limited to:

- (A) Verbal harassment, e.g. epithets, derogatory comments or slurs on a basis enumerated in FEHA;
- (B) Physical harassment, e.g., assault, impeding or blocking movement, or any physical interference with normal work or movement, when directed at an individual on a basis enumerated in the Act;
- (C) Visual forms harassment, e.g. derogatory posters, cartoons, or drawings on a basis enumerated in the Act; or
- (D) Sexual favors, e.g. unwanted sexual advances, which condition an employment benefit upon an exchange of sexual favors. (2 CCR., § 11019(b).)

The underlying complaint alleges pregnancy discrimination including (a) the failure to supply uniforms to Plaintiff due to her pregnancy (§ 22); unspecified different treatment due to Plaintiff’s pregnancy (§ 23); Defendant’s failure to timely return Plaintiff to work following pregnancy disability leave (§§ 23-27); and Defendant’s termination of Plaintiff after she took pregnancy leave (§§ 27-29). The complaint does not allege severe or pervasive facts establishing a hostile work environment based upon Plaintiff’s sex or pregnancy. (See *Aguilar v. Avis Rent A Car Sys., Inc.* (1999) 21 Cal.4th 121, 131 [acts of harassment cannot be occasional, isolated, sporadic, or trivial]. (*Aguilar*, 21 Cal.4th at 131.)

Personnel actions do not come within the meaning of harassment. (*Reno, supra* at pp. 646-647.) Cases cited by Plaintiff apply the EFAA in situations in which sexual

harassment arose. (See *Decloedt v. Radnet Mgmt., Inc.* (2026) 121 Cal.App.5th 732, 743 [hostile work environment based on sexual orientation]; *Liu v. Miniso Depot CA, Inc.* (2024) (2024) 105 Cal.App.5th 791, 796-797, [multiple sexual or derogatory sexual comments]; *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 558 [hostile work environment claim when employer scheduled employee with coworker who had sexually assaulted plaintiff; *Casey, supra* at p. 581 [sexual remarks by coworker]; *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75, 81 [questions about sexual activity, rumors about sexual orientation, mocking use of Mrs. instead of Mr. by supervisor].)

In essence, the complaint does not allege sexual harassment; it does allege discrimination in the terms and conditions of Plaintiff's employment by her employer based on pregnancy and sex. (*Reno, supra* at p. 645; *Roby, supra* at p. 706.) To construe the EFAA to extend to claims of pregnancy discrimination rather than sexual assault or sexual harassment would undermine the federal policy favoring arbitration. (*AT&T Mobility v. Concepcion* (2011) 563 U.S. 333, 339.)

Accordingly, Plaintiff's suit is not exempt from the FAA by the EFAA. Likewise, it is not exempt under the express terms of the arbitration agreement.

Defendants' petition to compel arbitration is GRANTED. The action shall be stayed pending completion of the arbitration. (Code Civ. Proc. § 1281.4.) The parties shall contact AAA to initiate an arbitration in the next 30 days. An arbitration review date is scheduled for **October 14, 2027 at 8:30 a.m.** Updated CMC statements to be filed 15 days prior to the hearing.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002